

Judgment Sheet

IN THE LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI
(JUDICIAL DEPARTMENT)

C.R.No.21 of 2021

Malik Muhammad Noor Khan

Vs.

Riaz Bhatti etc.

JUDGMENT

Date of Hearing	02.06.2026
Petitioner by:	Mr.Hassan Raza Pasha, Advocate
Respondent No.1 by:	Mr.Habibullah Malik, Advocate

Syed Ahsan Raza Kazmi, J. Through this Civil Revision, the petitioner has challenged the judgments and decrees dated 24.11.2015 and 11.11.2020 passed by the learned Trial Court and learned Appellate Court respectively, whereby his suit for specific performance was dismissed concurrently.

2. Brief facts necessary for disposal of the instant petition are that respondent No.2, namely Noor Ahmad (since deceased), was admittedly owner of land measuring 268 Kanals and 04 Marlas detailed in paragraph No.2 of the plaint. The petitioner's case is that respondent No.2 entered into an agreement to sell dated 24.04.2014 (Ex.P-5) in favour of respondent No.1 against a consideration of Rs.60,00,000/-, received the entire sale consideration and delivered possession of the suit property. It was further alleged that respondent No.2 authorized respondent No.1 to further transfer the suit property through an agreement to sell in favour of any third person. On the strength of the said agreement, respondent No.1 allegedly executed another agreement to sell dated 29.04.2014 (Ex.P-1) in favour of the petitioner against a consideration of Rs.60,50,000/-, received the entire sale consideration and delivered possession of the suit property. According to the petitioner, despite repeated requests and service of legal notice dated 19.07.2014,

respondent No.1 failed to execute the sale deed in his favour, compelling him to institute the suit out of which the instant revision arises.

3. Learned counsel for the petitioner argued that both the Courts below failed to appreciate the evidence available on record in its true perspective. It was contended that Ex.P-5 and Ex.P-1 stood duly proved and that the petitioner had always remained ready and willing to perform his part of the contract. Learned counsel further submitted that the learned Appellate Court committed a legal error by deciding the petitioner's application and the main appeal on the same day and it is a fit case for remand. In support of this contention, reliance was placed upon judgment reported as Mst. Ghulam Fatima and others v. Pahar Khan and others (2024 CLC 1538)

4. Conversely, learned counsel appearing on behalf of respondent No.2 supported the impugned judgments and decrees and submitted that the petitioner had utterly failed to prove the execution of Ex.P-5, which constituted the very foundation of his claim. It was further argued that the application filed before the learned Appellate Court was devoid of merit and was rightly dismissed through a separate order before decision of the appeal. According to him, the judgment relied upon by the petitioner is distinguishable on facts.

5. I have heard the learned counsel for the parties and perused the available record with their assistance.

6. Before advertng to the merits of the controversy, it would be appropriate to deal with the objection raised by the learned counsel for the petitioner regarding the procedure adopted by the learned Appellate Court. The record reveals that the application moved by the petitioner was decided through a separate order and, thereafter, the appeal was decided on merits on the same date. The reliance placed upon Mst. Ghulam Fatima and others v. Pahar Khan and others (2024 CLC 1538) is misconceived. In the cited case, the controversy arose from a situation where an application having a direct bearing on the merits of the lis was decided along with the main appeal, thereby giving rise to the question

whether such simultaneous adjudication had adversely affected the proper determination of the matter. In the present case, however, the learned Appellate Court did not decide the application along with the appeal; rather, it first adjudicated the application through a separate order and only thereafter proceeded to decide the appeal on merits. Therefore, the factual premise on which the cited judgment rests is altogether different and the same is clearly distinguishable from the facts of the instant case.

7. It is by now well settled that, as a matter of judicial propriety and fair administration of justice, all pending applications having a material bearing on the merits of the case ought to be decided before adjudication of the main lis. The object behind such practice is to ensure that no party is deprived of an opportunity to substantiate its case and that the controversy is adjudicated upon after considering all matters relevant to the determination of rights of the parties. However, this principle is not an inflexible rule of universal application. The nature, scope and effect of the application in question must always be examined to determine whether its decision has any real bearing upon the outcome of the case. Where an application is found to be frivolous, misconceived, superfluous, or incapable of affecting the merits of the controversy, its dismissal and the contemporaneous decision of the main matter do not, by themselves, render the proceedings illegal or vitiate the judgment. The law does not favour remand or interference merely on account of a procedural irregularity unless such irregularity has occasioned failure of justice or caused prejudice to a party. Guidance in this regard may be sought from Peer Bakhsh and others v. Nabi Bakhsh and others (2002 YLR 1630) and Mst. Meraj Bibi and 4 others vs. Muhammad Shafique through L.Rs. and others (PLD 2020 Lahore 888), wherein it was recognized that non-decision or simultaneous decision of an application, which has no material bearing on the merits of the case, does not necessarily affect the validity of the proceedings. The Hon'ble Supreme Court of Pakistan has also reiterated in Iftikhar Ali Abbasi and others vs. Ghulam Qadir and others (PLD 2025 SC 685) that where the omission to decide an application separately causes no prejudice to the party

concerned and no fruitful purpose would be served by remanding the matter for such decision, interference on a purely technical ground is not warranted. The emphasis, therefore, is not on the mere existence of a pending application but on the question whether its non-decision or mode of decision has materially affected the rights of the parties or the ultimate adjudication of the lis. In the absence of such prejudice, procedural technicalities cannot be allowed to defeat substantive justice.

8. In the present case, the application itself reveals that the petitioner sought to produce witnesses at the appellate stage in order to cure deficiencies in the evidence already led before the Trial Court. The only explanation offered was that the witnesses could not be produced earlier due to illness. No sufficient cause, as contemplated by law, was established. The learned Appellate Court, therefore, rightly declined the request. Consequently, no procedural irregularity warranting interference by this Court has been demonstrated.

9. Coming to the merits of the case, it is an admitted position that the petitioner's suit for specific performance is founded upon agreement to sell Ex.P-1 allegedly executed by respondent No.1 in his favour. However, the validity and enforceability of Ex.P-1 are entirely dependent upon the prior agreement to sell Ex.P-5 allegedly executed by respondent No.2 in favour of respondent No.1. Therefore, unless Ex.P-5 is proved in accordance with law, the petitioner's claim cannot succeed.

10. The record shows that respondent No.2 categorically denied execution of Ex.P-5 in his written statement. Although he was subsequently proceeded against ex parte, his denial of execution remained part of the record. Respondent No.1, on the other hand, admitted the petitioner's claim in his written statement but failed to appear in the witness box to substantiate the same and was also proceeded against ex parte. It is settled law that pleadings by themselves do not constitute proof and must be supported by legally admissible evidence.

11. Admittedly Ex.P-5 is an attested document. Therefore, its execution was required to be proved in accordance with Articles 17 and

79 of the Qanun-e-Shahadat Order, 1984. To discharge this burden, the petitioner produced only one alleged marginal witness, namely Muhammad Yaqoob (PW-2). A careful examination of his testimony reveals that he merely stated that respondent No.1 purchased the property from respondent No.2 and that he signed the agreement as a witness. Significantly, he never deposed that the document was executed in his presence. He also failed to disclose the date, time and place of execution, the identity of the scribe, the stamp vendor or other relevant particulars relating to the transaction. The other attesting witness was not produced at all. Such evidence is wholly insufficient to prove execution of an attested document.

12. It is further noteworthy that the reverse side of Ex.P-5 neither bears the signatures/thumb impression of the alleged executant Noor Ahmad nor contains his CNIC particulars. In the facts and circumstances of the case, these omissions assume considerable significance and further impair the evidentiary worth of the document. Reference in this regard may be made to Wali Muhammad and another vs. Ahmed Saeed and another (2005 YLR 3163).

13. Another circumstance which cannot be overlooked is that respondent No.1, despite allegedly paying the entire sale consideration under Ex.P-5 and obtaining possession of the property, never sought specific performance thereof through any legal proceedings. This conduct casts serious doubt upon the genuineness of the alleged transaction.

14. Once Ex.P-5 fails, the entire superstructure raised by the petitioner on the basis of Ex.P-1 collapses. The petitioner was neither a party to Ex.P-5 nor a witness thereto. His claim is purely derivative and dependent upon the validity of the earlier agreement. Since the foundational document itself remained unproved, no enforceable right accrued in favour of the petitioner.

15. Even otherwise, it is a settled principle of law that a mere agreement to sell does not, by itself, create any title, ownership, or

proprietary interest in immovable property. Admittedly, no registered sale deed, mutation, or any other instrument of transfer was ever executed by respondent No.2 in favour of respondent No.1. Consequently, respondent No.1 never acquired any legal title in the suit property. In the absence of such title, respondent No.1 was not competent in law to convey any better right or interest to the petitioner than that which he himself possessed. The maxim *nemo dat quod non habet*—no one can transfer a better title than he himself has—squarely governs the present case. Therefore, any subsequent transaction purportedly entered into by respondent No.1 on the basis of a mere agreement to sell, without having acquired ownership of the property, could not confer any valid or enforceable proprietary right upon the petitioner. Any such transfer, lacking a lawful source of title, would be devoid of legal efficacy and incapable of creating rights in derogation of the true owner's title.

16. The relief of specific performance being equitable and discretionary in nature can only be granted where a valid and enforceable contract is established through confidence-inspiring evidence. The petitioner has failed to satisfy this essential requirement. Both the Courts below have concurrently recorded findings of fact after proper appraisal of the evidence available on record. No misreading, non-reading or jurisdictional defect has been pointed out which may warrant interference in exercise of revisional jurisdiction. Even otherwise learned counsel for the petitioners remained unable to point out the same in the impugned judgments of learned Courts below and it is well settled that concurrent findings of fact cannot be interfered with in revisional jurisdiction unless shown to be tainted with material irregularity or illegality and against the law, which is not the case here. Reliance in this respect is placed on the judgments reported as Nasir Ali vs. Muhammad Asghar (2022 SCMR 1054), Aamir Afzal and another vs. S. Akmal (deceased) through L.Rs. and two others (2024 SCMR 1649), Hadayat Khan and others vs. Mst. Nasreen and others (PLD 2025 SC 502) and Rana Muhammad Yamin and other vs. Muhammad Jamil (deceased) through L.Rs. and others (2025 SCMR 860).

17. Consequently, instant Civil Revision being devoid of merit, is **dismissed.**

(Syed Ahsan Raza Kazmi)
Judge

Approved for reporting.

Judge

Amjad